

24STCV04378 24STCV04378

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-30

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Case Number: 24STCV04378 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL DATE: N/A

CASE: Adam Guzman v. Triple G. Wellness, Inc., et al.

CASE NO.: 24STCV04378

DEFAULT

JUDGMENT

On February 22, 2024, Plaintiff, Adam Guzman, filed this action against Defendant, Triple G Wellness, Inc., dba Pickup USA Fitness, arising out of Plaintiff's employment with Defendant as an operations manager.

On April 2, 2024, Plaintiff served Defendant with the Summons and Complaint by substituted service.

On November 22, 2024, default was entered against Defendant.

On September 30, 2025, Does 1-20 were dismissed from this action. On the same day, Plaintiff

filed a memorandum of points and authorities and other documents in support of default judgment against Defendant. Plaintiff requests a default judgment against Defendant in the sum of \$122,920.15, consisting of \$58,500 in past economic damages, \$1,140 in missed meal and rest breaks penalties, \$50,000 in non-economic damages, \$12,757.50 in attorney's fees, and \$522.65 in costs.

On October 9,

2025, the court denied the application without prejudice because (1) Plaintiff did not file a request for court judgment on Judicial Council Form CIV-100, (2) Plaintiff did not file a proposed judgment, (3) Plaintiff did not properly calculate attorney fees pursuant to LASC Local Rule 3.214, and (4) there was no proof of service of a statement of damages.

On December 15,

2025, Plaintiff filed another default judgment application. Plaintiff requested a default judgment against Defendant in the sum of \$113,685.15, consisting of \$58,500 in past economic damages, \$1,140 in missed meal and rest breaks penalties, \$50,000 in noneconomic damages, \$2,986.40 in attorney's fees, and \$1,058.75 in costs.

On January 22,

2026, the court both denied the application for default judgment without prejudice, and vacated the November 22, 2024, entered default as well. The default was stricken due to the failure to serve the statement of damages prior to the entry of the default. (*Sass v. Cohen* (2020) 10 Cal.5th 861, 870-71.) The statement of damages was only served on October 25, 2025, well after the November 22, 2024, entered default. The court ordered Plaintiff re-serve the summons, complaint, and statement of damages, and obtain a new default judgment, if no response from Defendant.

On April 22, 2026,

the court acknowledged the new proof of service, and continued the OSC re: Default Judgment to July 30, 2026.

Upon review, the court finds the application is defective for the following reasons:

· The April 9, 2026,

filed proof of service indicates substituted service on April 2, 2024. Given the October 25, 2025, represented statement of damages as presented in the

October 30, 2024, filed proof of service, the proof of service indicating service of the statement of damages in April 2024, raises concerns over the veracity of the proof of service and declaration of the process server. At a minimum, the date represents a significant typographical error requiring address.

- The application therefore again lacks a valid proof of service for the summons, complaint and statement of damages.
- Plaintiff failed to obtain a default from the clerk following the striking of the prior default. The court cannot enter a default judgment without a default on file.
- Plaintiff lacks any documentary support for the December 4, 2025, filed statement of damages.

Accordingly, Plaintiff's default judgment application is DENIED without prejudice. Plaintiff is to serve Defendant with the summons, complaint, and statement of damages and present a valid proof of service establishing service after the striking of the last default. A proof of service from the same process server with just an updated date may require a declaration from the process server under oath regarding service and the reason for the submission of the last proof of service. Plaintiff is to obtain a default from the clerk, and submit a fully supported judgment application without any further delays.

Clerk of the court to give notice.

Dated: July 30, 2026

Brock T.
Hammond

Judge of
the Superior Court